

26STCV00875 26STCV00875

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV00875 Hearing Date: July 8, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:16 PM on July 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 7, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that he was picking up medications at CVS. After Plaintiff expressed concern to a clerk supervisor that a Lotto vending machine failed to dispense any change to him, a security guard employed by Defendants without warning or provocation, approached Mr. Abera from behind and physically attacked him without any justification,

causing Mr. Abera bodily harm.

Defendant Garfield Beach CVS, LLC demurs to the Complaint and moves to strike portions thereof.

Defendant AEGS Eagle Guard Services, Inc. (Doe 1), erroneously sued as American Eagle Security, Inc., also demurs to the Complaint and moves to strike portions thereof.

TENTATIVE RULING

Defendant Garfield Beach CVS, LLC's demurrer to the Complaint is OVERRULED as to the first cause of action.

Defendant Garfield Beach CVS, LLC's motion to strike is GRANTED as to

the entirety of page 4, paragraph 13 (punitive damages); Page 5, paragraph 26 (punitive damages); Page 8, paragraph 6, the prayer for punitive damages. Unless Plaintiff can articulate facts which he could amend to plead in an amended complaint, Plaintiff may only seek leave to amend to add punitive damages if discovery uncovered in this litigation justifies such amendment.

Defendant Garfield Beach CVS, LLC is to answer the remaining allegations of the Complaint within 10 days.

Defendant AEGS Eagle Guard Services, Inc. (Doe 1)'s demurrer to the Complaint is OVERRULED as to the first, third, fourth and fifth causes of action.

Defendant AEGS Eagle Guard Services, Inc. (Doe 1)'s motion to strike is GRANTED as to Page 8, line 17, which reads as follows: "For punitive damages." Unless Plaintiff can articulate facts which he could amend to plead in an amended complaint, Plaintiff may only seek leave to amend to add punitive damages if discovery uncovered in this litigation justifies such amendment.

Defendant AEGS Eagle Guard Services, Inc. is to answer the remaining allegations of the Complaint within 10 days.

ANALYSIS

Defendant Garfield Beach CVS, LLC's Demurrer

Meet and
Confer

The Declaration of Ji Hong Sohn reflects
that Plaintiff's counsel did not respond to meet and confer efforts. This satisfies
Code Civ. Proc. § 430.41(a)(3)(B).

Discussion

The Court has reviewed the moving, opposing
and reply briefs filed by the parties, but only addresses the points which the Court
deems to be material to the disposition of this motion.

Defendant Garfield Beach CVS, LLC demurs to the Complaint
as follows:

1, First Cause of Action (Battery).

Defendant argues that respondeat superior is not appropriate
with respect to the alleged subject battery incident because it is outside the scope
of the employee's employment. This argument is not persuasive.

The Complaint alleges at ¶ 8:

8. Plaintiff is informed and believes and thereon alleges
that Defendant JOHN DOE was, at all relevant times, a resident of the State of California
and County of Los Angeles. At all times relevant to the acts and omissions herein
alleged, Defendant JOHN DOE, was an employee, and acted in the course and scope
of his employment with Defendants CVS and AES; and DOES 1-50, inclusive.

Whether or not the battery was within the scope of the
security guard's employment—because the risk of such a tort was predictable—is a
question of fact outside the scope of this demurrer. Indeed, it is highly foreseeable
that a security guard would use physical force against a patron.

The court went on to make clear that “The nexus required for respondeat superior liability—that
the tort be engendered by or arise from the work—is to be distinguished from

'but for' causation. That the employment brought tortfeasor and victim together in time and place is not enough. We have used varied language to describe the nature of the required additional link (which, in theory, is the same for intentional and negligent torts): the incident leading to injury must be an 'outgrowth' of the employment (Citation omitted); the risk of tortious injury must be 'inherent in the working environment' (Citation omitted) or 'typical of or broadly incidental to the enterprise [the employer] has undertaken' (Citation omitted) [¶] ... The employment, in other words, must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought." (Citation omitted.)

The question, then, is whether an employee's physical eruption, stemming from his interaction with a customer, is a predictable risk of retail employment. Our Supreme Court has suggested it may well be: "Flare-ups, frustrations, and disagreements among employees are commonplace in the workplace and may lead to 'physical act[s] of aggression.' (Citations omitted.)" "In bringing [people] together, work brings [personal] qualities together, causes frictions between them, creates occasions for lapses into carelessness, and for fun-making and emotional flareup. ... These expressions of human nature are incidents inseparable from working together. They involve risks of injury and these risks are inherent in the working environment." [Citations.]' (Citations omitted.)

Although the courts in both Carr and Parkhouse Tire Service were addressing the risk of violence between coworkers, rather than between an employee and a customer, we cannot draw a meaningful distinction between [*381] the two scenarios. The workplace stresses and strains which might cause an employee to erupt in anger are not dependent upon whether the person who happens to be standing in the line of fire is a coworker or a retail customer. (Citations omitted.) In either scenario, as the foregoing authorities establish, "flare-ups [and] frustrations" are commonplace for employees during the course of their work.

Nonetheless, AutoZone argues that the altercation between Flores and Gomez in this case could not be viewed as an "outgrowth[] of employment" (citation omitted) because it was not attributable to "work-related events or conditions" (citation omitted). According to AutoZone, it was not until after Gomez "had completed the appointed task of directing the plaintiff to the location where the price for motor oil was displayed," that "a spark of malice ... was suddenly and unexpectedly ignited after [Gomez] heard he should not have come to work." That spark was "purely personal," and purportedly "had nothing to do with the price of oil, or retrieving a case off the shelf for [Flores]."

We are not persuaded. In our view, the anger generated during the interaction between Flores and Gomez cannot be so tidily compartmentalized—at least not as a matter of law. While it may be true that Gomez did not develop his malicious “spark” until the moment Flores made his last comment, a jury could certainly infer from his prior comments that his anger had been “sparked” at an earlier point. “Ordinarily, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when ‘the facts are undisputed and no conflicting inferences are possible.’ “ (Citation omitted.) Here, even if the “facts” could be characterized as undisputed, the possible inferences to be drawn from those facts cannot.

(Flores v. AutoZone West, Inc. (2008) 161 Cal.App.4th 373, 380-81 [bold emphasis and underlining added].)

Defendant also argues that negligent hiring does not give rise to vicarious liability for battery. However, given that Plaintiff has sufficiently pled vicarious liability based on respondeat superior, as discussed above, the Court does not address this argument, as Defendant did not specify that it was demurrer to the negligent hiring cause of action in the notice of demurrer.

Defendant also argues that the Complaint does not allege any facts which demonstrate that CVS touched Plaintiff or caused Plaintiff to be touched with an intent to harm. Indeed, the facts related to CVS's involvement do not give rise to a battery cause of action.

Defendant also argues that CVS did not hire the security guard that allegedly assaulted Plaintiff, giving rise to the Incident and the instant action. (See Sohn Decl., ¶ 8.) In fact, CVS does not hire security guards for the subject store, but instead contracts with third-party security service providers for its stores, including the subject store during the time of the Incident. (See Sohn Decl., ¶ 8.) As a result, Plaintiff's intentional tort cause of actions against CVS is wholly inappropriate, insofar as it relies on and merely assumes that the security guard was in the employ of CVS.

On demurrer, the Court must ignore evidence extrinsic to the Complaint. Plaintiff alleges that the security guard was on the premises while Plaintiff was in CVS. (Complaint, ¶¶ 16, 17.) Plaintiff is entitled to conduct discovery to discover who may be deemed to be the employer of the security guard.

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation].” (Citation omitted.)

(Hahn v. Mirda (2007)
147 Cal.App.4th 740, 747.)

A demurrer for uncertainty is properly sustained where the complaint is so vague or uncertain that the defendant cannot reasonably respond, i.e., when the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, supra, ¶ 7:85.) Demurrers for uncertainty are disfavored and strictly construed “because ambiguities can reasonably be clarified under modern rules of discovery.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.)

The demurrer to the first cause of action
is OVERRULED.

Defendant Garfield Beach CVS, LLC’s Motion To Strike

Meet and
Confer

The Declaration of Ji Hong Sohn reflects
that Plaintiff’s counsel did not respond to meet and confer efforts. This satisfies
Code Civ. Proc. § 435.5(a)(3)(B).

Discussion

Defendant Garfield Beach CVS, LLC moves to strike the
following portions of the Complaint:

¿ The entirety of page 4, paragraph 13 (punitive
damages); Page 5, paragraph 26 (punitive damages); Page 8, paragraph 6, the prayer

for punitive damages .

Plaintiff has

not pled sufficient facts demonstrating that Defendants acted with malice, oppression or fraud as those terms are defined in Civil Code § 3294(c), as follows:

(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

Moreover, Plaintiffs

have not pled sufficient facts to justify the imposition of punitive damages against the corporate Defendant:

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

Civil Code § 3294(b)(bold emphasis added.)

To withstand a motion to strike punitive damages allegations, the complaint must set forth facts supporting a claim for punitive damages:

The mere allegation an intentional tort

was committed is not sufficient to warrant an award of punitive damages. (Citation omitted.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.

(Grieves v. Superior Court (Fox) (1984) 157 Cal.App.3d 159, 166 [emphasis added]; see also Clauson v. Superior Court (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255 (“[T]o survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.”);

Also relevant to this discussion is the case of G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29:

When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. (Citation omitted.) When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. (Citation.) When a defendant must produce evidence in defense of an exemplary damage claim; fairness demands that he receive adequate notice of the kind of conduct charged against him.

Civil Code section 3294 . . . treats “oppression, fraud, or malice” as separate basis for imposition of exemplary damages. A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient. (Citations omitted.)

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 611.)

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (Citation omitted.)” Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 (bold emphasis added).

However, “[p]leading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation. (Citation omitted.)” Perkins v. Superior Court (1981) 117 Cal. App. 3d 1, 6-7 (bold emphasis added).

It may be that, during discovery Plaintiff may uncover facts which justify the imposition of punitive damages against this corporate defendant. However, there are insufficient facts pled in the Complaint.

While Plaintiff argues that ratification is pled in the Complaint, there is no factual basis for this, i.e., that Defendants failed to discipline or terminate John Doe after the incident.

The motion to strike is GRANTED. Unless Plaintiff can currently articulate facts which he could allege in an amended complaint to support a claim for punitive damages, Plaintiff may only seek leave to amend to add punitive damages if discovery uncovered in this litigation justifies such amendment.

Defendant Garfield Beach CVS, LLC is to answer the remaining allegations of the Complaint within 10 days.

Defendant AEGS Eagle Guard Services, Inc's Demurrer

Meet and
Confer

The Declaration of Mary M. Campo reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

Defendant AEGS Eagle Guard Services, Inc. (Doe 1), erroneously sued as American Eagle Security, Inc. demurs to the Complaint as follows:

1. First Cause of Action (Battery).

Defendant argues that the Complaint alleges that Plaintiff was battered by Defendant John Doe, not by this Moving Defendant.

There are no facts alleged that this Moving Defendant touched, struck, or intended any contact with Plaintiff. As such, Plaintiff fails to state facts sufficient to constitute a cause of action for battery against this Moving Defendant.

For the reasons discussed above re: Defendant Garfield Beach CVS's demurrer, Plaintiff has sufficiently pled a basis for respondeat liability for John Doe's battery. Plaintiff is entitled to conduct discovery as to which Defendant is liable on this basis.

The demurrer to the first cause of action is OVERRULED.

2. Third Cause of Action (Negligent Hiring, Training, Supervision and Retention).

Defendant argues that the Complaint contains no actual facts showing that this Moving Defendant knew of any unfitness of John Doe. Without supporting facts, this claim is merely conclusory, insufficiently pled, and fails as a matter of law.

" In California, an employer can be held liable for negligent hiring if he knows the employee is unfit, or has reason to believe the employee is unfit or fails to use reasonable care to discover the employee's unfitness before hiring him. [Citations.]" (Citation omitted.) "The theory of negligent hiring here encompasses the particular risk of [battery] by an employee with a history of this specific conduct." (Citation omitted.) Furthermore, there can be no liability for negligent supervision "in the absence of knowledge by the principal that the agent or servant was a person who could not be trusted to act properly without being supervised." (Citation omitted.)

(Juarez v. Boy Scouts of America, Inc. (2000) 81 Cal.App.4th 377, 395.)

At this point of the litigation, it is sufficient that Plaintiff alleges at ¶¶ 33 and 34 that Defendants new or should have known that Defendant John Doe was incompetent, unfit, dangerous, and prone to use unnecessary and excessive force, thereby creating a particular risk of harm to patrons including Plaintiff, yet red, trained, supervised, and/or retained him and failed to develop and implement tactically sound plans for approaching and containing individuals at the subject premises.

Plaintiff is entitled to conduct discovery to ascertain the identity of John Doe and his background relative to what his employer(s) knew or should have known about him, and what training they gave regarding security guards.

Defendant also argues that when an employer admits vicarious liability under the doctrine of respondeat superior for an employee's negligence, a separate cause of action for negligent hiring, supervision, or retention cannot be maintained.

However, Defendant does not concede vicarious liability under respondeat superior, as it demurred to the first cause of action as if no such theory existed. "Moreover, a party may plead in the alternative and may make inconsistent allegations. (Citations omitted.)" (Adams v. Paul (1995) 11 Cal.4th 583, 593.)

The demurrer to the third cause of action is OVERRULED.

3. Fourth Cause of Action (Intentional Infliction of Emotional Distress).

Defendant argues that Plaintiff does not allege any outrageous conduct by this Moving Defendant. At most, they allege the negligence of this Moving Defendant, which falls far short of the "outrageous conduct" required as a matter of law.

"The elements of the tort of intentional infliction of emotional distress are: ' (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.' [Citation.]" (Citation omitted.) "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (Ibid.)

(Catsouras v. Department of California Highway Patrol (2010) 181 Cal.App.4th 856, 874-75.)

Here, Defendant does not argue that John Doe's conduct was insufficient to constitute IIED. As discussed above re: Defendant Garfield Beach CVS's demurrer, Plaintiff has sufficiently pled a basis for respondeat liability for John Doe's intentional torts, including IIED. Plaintiff is entitled to conduct discovery as to which Defendant is liable on this basis.

The demurrer to the fourth cause of action is OVERRULED.

4. Fifth Cause of Action (Negligent Infliction of Emotional Distress).

Defendant argues that California does not recognize a separate cause of action for NIED, and this cause of action is duplicative of the negligence cause of action (to which Defendant does not demur). However, "[s]uperfluity does not vitiate." (Civil Code § 3537.)

Defendant also argues that Plaintiff's Complaint contains no factual allegations demonstrating that this Moving Defendant owed Plaintiff any specific duty beyond that owed to the general public.

["[T]here is no independent tort of negligent infliction of emotional distress. [Citation.] The tort is negligence, a cause of action in which a duty to the plaintiff is an essential element. [Citations.] That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.".] "[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (Citation omitted.) Thus, at the very least, there could not have been a breach of duty during the period when no shocks were felt on the property.

(Wilson v. Southern California Edison Co. (2015) 234 Cal.App.4th 123, 156.)

Here, the Complaint alleges negligent deployment and use of force by security personnel. (Complaint, ¶ 42.) John Doe allegedly caused Plaintiff physical injury.

The existence of a legal duty is a question of law for the court. (Citation [*1189] omitted.) “As this court has explained, ‘duty’ is not an immutable fact of nature ‘but only an expression of the sum total of those considerations of policy which lead the law to say that the particular plaintiff is entitled to protection.’” [Citations.] In California, the general rule is that all persons have a duty “to use ordinary care to prevent others being injured as the result of their conduct. ...” (Citations omitted.) Foreseeability of harm is a “‘crucial factor’ “ in determining the existence and scope of that duty. (Citation omitted.)

(John B. v. Superior Court (2006) 38 Cal.4th 1177, 1188-89.)

The Court finds that John Doe had a duty to use ordinary care in performing his duties as a security guard to prevent injuring patrons of CVS, such as Plaintiff.

Because the alleged negligence was on the part of John Doe in negligent use of force, respondeat superior is the basis of this claim. As noted above, the basis for respondeat superior is sufficiently pled.

Defendant also argues that John Doe’s actions are an independent criminal act which constitutes an intervening or superseding cause relieving a defendant of liability unless the criminal act was sufficiently foreseeable.

Defendants invoked the tort defense of intervening and superseding cause, but the trial court refused to instruct the jury on those defenses. A principle in tort law is that when “subsequent to the defendant’s negligent act, an independent intervening force actively operates to produce the injury, the chain of causation may be broken. It is usually said that if the risk of injury might have been reasonably foreseen, the defendant is liable, but that if the independent intervening act is highly unusual or extraordinary, not reasonably likely to happen and hence not foreseeable, it is a superseding cause, and the defendant is not liable.” (Citation omitted.)

(Ash v. North American Title Co. (2014) 223 Cal.App.4th 1258, 1274 [bold emphasis and underlining added].)

Here, the alleged negligent act which itself caused Plaintiff injury cannot be consider "subsequent to" such negligent act. Moreover, it is reasonably foreseeable that a security guard may apply physical force to a patron while performing security duties. Against, this must be viewed through the lens of respondeat superior liability as to this demurring Defendant. The Court finds that the concepts of intervening and superseding cause is inapplicable to the facts pled.

The demurrer to the fifth cause of action is OVERRULED.

Defendant AEGS Eagle Guard Services, Inc.'s Motion To Strike

Meet and Confer

The Declaration of Mary M. Campo reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 435.5.

Discussion

Defendant AEGS Eagle Guard Services, Inc. (Doe 1), erroneously sued as American Eagle Security, Inc. moves to strike the following portions of the Complaint.

⌂ Page 8, line 17, which reads as follows: "For punitive damages;"

For the reasons discussed above re: Defendant Garfield Beach CVS, LLC's motion to strike, the motion to strike is GRANTED. Unless Plaintiff can articulate facts which he could amend to plead in an amended complaint, Plaintiff may only seek leave to amend to add punitive damages if discovery uncovered in this litigation justifies such amendment.

Defendant AEGS Eagle Guard Services, Inc. is to answer the remaining allegations of the Complaint within 10 days.